



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB2305: private towing carriers; regulation; rates

BIASIUCCI FLOOR AMENDMENT

1. Clarifies that the regulation of towing rates only apply to *motor vehicles towed from private property* by private towing carriers.
2. Applies the rate for towing, transporting, impounding or storing a motor vehicle for a city, town or county that does not regulate the rate for private towing vehicles from private property as of January 1, 2026.
3. Directs a city, town or county, by January 1, 2027, that has regulated the rate for private towing vehicles from private property to update the rate for private towing vehicles to the market standards or the rates and fees as prescribed.
4. Requires that signs on restricted parking posted in a private parking area must contain the rights of the owner of the vehicle.
5. Asserts that any *private towing carriers that tows* a vehicle, rather than any person towing a vehicle, must notify the appropriate law enforcement agency.
6. Tasks a private towing carrier to release an impounded vehicle to the owner who *makes arrangements*, rather than makes satisfactory arrangements, to pay.
7. Subjects a *private* parking facility owner that intentionally, knowingly or recklessly violates rules on private towing to violation damages.
8. Restricts a private towing carrier from requiring the immediate payment as a condition of releasing a vehicle.
9. Mandates that the regulation on private towing from private property must be enforced by a city's, town's or county's law enforcement agency.
10. Prohibits a private towing carrier from paying or agreeing to pay a private property owner or an employee of the owner from which a vehicle is towed.
11. Restricts a private property owner or an owner's employee from which a vehicle is towed from accepting or agreeing to accept any money, fees, commissions, credits, gifts, gratuities or other compensation for the provided towing service.
12. Excludes a motor vehicle dealership from the definition of a *private towing carrier*.

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2/20/2026

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13. Establishes the Heavy-Duty Truck Towing Study Committee (Study Committee)
14. Outlines the Study Committee's membership.
15. Lists the Study Committee's duties.
16. Directs the Study Committee to submit a report, by June 30, 2027, regarding the Study Committee's activities and recommendations to the Governor, the President of the Senate and the Speaker of the House of Representatives and to provide a copy to the Secretary of State.
17. Repeals the Study Committee on December 31, 2027.
18. Makes conforming changes.

BIASIUCCI SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2305

I move the following SUBSTITUTE amendment to the TRANSPORTATION & INFRASTRUCTURE
Committee Amendment to
HOUSE BILL 2305 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-499.05, Arizona Revised Statutes, is amended
3 to read:

4 9-499.05. State preemption; rates for private towing carrier;
5 notice of parking violations; photographic
6 documentation; tow carrier identification;
7 release of motor vehicle; damages; violation;
8 classification; applicability; definition

9 ~~A. The governing body of an incorporated city or town may regulate~~
10 ~~the maximum rate and charge for towing, transporting or impounding a motor~~
11 ~~vehicle from private property without the permission of the owner or~~
12 ~~operator of the vehicle by any private towing carriers doing business~~
13 ~~within its boundaries. A private towing carrier is subject to the maximum~~
14 ~~rate and charge regulation prescribed by the city or town for all such~~
15 ~~towing, transporting or impounding services if the vehicle being towed or~~
16 ~~transported is towed from private property located within the boundaries~~
17 ~~of the city or town.~~

18 A. THE REGULATION OF TOWING RATES FOR [MOTOR VEHICLES THAT ARE
19 TOWED FROM PRIVATE PROPERTY BY] PRIVATE TOWING CARRIERS PURSUANT TO THIS
20 SECTION IS A MATTER OF STATEWIDE CONCERN. THE REGULATION OF TOWING RATES
21 FOR [MOTOR VEHICLES THAT ARE TOWED BY] PRIVATE TOWING CARRIERS PURSUANT TO
22 THIS SECTION IS NOT SUBJECT TO FURTHER REGULATION BY A COUNTY, CITY, TOWN
23 OR OTHER POLITICAL SUBDIVISION OF THIS STATE.

24 B. [FOR A CITY OR TOWN THAT DOES NOT REGULATE THE RATE FOR PRIVATE
25 TOWING MOTOR VEHICLES FROM PRIVATE PROPERTY AS OF JANUARY 1, 2026.] THE
26 RATE FOR TOWING, TRANSPORTING, IMPOUNDING OR STORING A MOTOR VEHICLE [THAT

1 IS TOWED FROM PRIVATE PROPERTY] SHALL BE THE RATE PUBLISHED IN THE
2 DEPARTMENT OF PUBLIC SAFETY TOW SERVICE AGREEMENT FOR THE LOCATION FROM
3 WHICH THE MOTOR VEHICLE WAS TOWED.

4 [C. ON OR BEFORE JANUARY 1, 2027, A CITY OR TOWN THAT HAS, AS OF
5 JANUARY 1, 2026, REGULATED THE RATE FOR PRIVATE TOWING MOTOR VEHICLES FROM
6 PRIVATE PROPERTY SHALL UPDATE THE RATES FOR PRIVATE TOWING MOTOR VEHICLES
7 FROM PRIVATE PROPERTY TO THE MARKET STANDARDS OR THE RATES AND FEES
8 PRESCRIBED BY THIS SECTION.]

9 ~~B.~~ ~~[C.]~~ [D.] The owner or agent of the owner of the private
10 property shall be deemed to have given consent to unrestricted parking by
11 the general public in any parking area of the private property unless ~~such~~
12 ~~THE~~ parking area is posted with signs as prescribed by this subsection
13 ~~which~~ ~~THAT~~ are clearly visible and readable from any point within the
14 parking area and at each entrance. ~~THIS SUBSECTION DOES NOT APPLY IF A~~
15 ~~MOTOR VEHICLE IS TOWED FROM A SINGLE-FAMILY RESIDENCE AND THE OWNER OF THE~~
16 ~~SINGLE-FAMILY RESIDENCE OR A TENANT AT THE SINGLE-FAMILY RESIDENCE IS THE~~
17 ~~PARTY WHO REQUESTED THE TOW. Such~~ THE signs ~~shall contain~~ MUST MEET, at a
18 minimum, ALL OF the following REQUIREMENTS:

19 ~~1. Restrictions on parking.~~

20 ~~2. Disposition of vehicles found in violation of the parking~~
21 ~~restrictions.~~

22 ~~3. Maximum cost to the violator, including storage fees and any~~
23 ~~other charges that could result from the disposition of a vehicle parked~~
24 ~~in violation of parking restrictions.~~

25 ~~4. Telephone number and address where the violator can locate the~~
26 ~~violator's vehicle.~~

27 1. BE POSTED IN A MANNER TO FACE AND BE CONSPICUOUSLY VISIBLE TO
28 THE DRIVER OF A MOTOR VEHICLE THAT ENTERS THE PARKING FACILITY AND BE
29 POSTED ON THE LEFT OR RIGHT SIDE OF EACH DRIVEWAY OR CURB CUT IN WHICH A
30 MOTOR VEHICLE CAN ENTER THE FACILITY.

31 2. BE CONSTRUCTED USING WEATHER RESISTANT MATERIALS.

32 3. BE A MINIMUM OF NINE INCHES WIDE AND TWELVE INCHES TALL AND NOT
33 MORE THAN TWELVE INCHES WIDE AND EIGHTEEN INCHES TALL.

34 4. CONTAIN ALL OF THE FOLLOWING:

35 (a) THE FOLLOWING LANGUAGE: "UNAUTHORIZED VEHICLES WILL BE TOWED AT
36 THE MOTOR VEHICLE OWNER'S OR OPERATOR'S EXPENSE PURSUANT TO ARIZONA
37 REVISED STATUTES SECTION 9-499.05".

38 (b) A TELEPHONE NUMBER THAT IS MONITORED TWENTY-FOUR HOURS A DAY
39 THAT ENABLES THE MOTOR VEHICLE OWNER OR OPERATOR TO LOCATE THE TOWED MOTOR
40 VEHICLE.

41 (c) THE TOWING AND STORAGE RATE AND INFORMATION ON THE RELEASE OF
42 THE MOTOR VEHICLE [AND THE RIGHTS OF THE OWNER OF THE MOTOR VEHICLE]
43 THROUGH A WEBSITE LINK OR QR CODE.

44 5. BE PERMANENTLY MOUNTED ON A POLE, POST, PERMANENT WALL OR
45 PERMANENT BARRIER.

1 ~~C.~~ ~~[D.]~~ [E.] It is unlawful for a private towing carrier to tow
2 or transport a motor vehicle from private property without the permission
3 of the owner or operator of the motor vehicle unless ~~such~~ THE private
4 towing carrier receives a request from a law enforcement agency or the
5 express written permission from the owner or the agent of the owner of the
6 property that has complied with the requirements of subsection ~~B.~~ ~~[C.]~~ [D]
7 OF THIS SECTION. The owner or the owner's agent shall either sign each
8 towing order or authorize the tow by a written contract ~~which~~ THAT is
9 valid for a specific length of time. The private towing carrier may not
10 act as the agent of the owner.

11 ~~D. A person who violates subsection C is guilty of a class 2~~
12 ~~misdemeanor.~~

13 ~~[F.]~~ [F.] BEFORE MECHANICALLY CONNECTING A MOTOR VEHICLE TO A
14 PRIVATE TOWING CARRIER, THE PRIVATE TOWING CARRIER SHALL DOCUMENT, THROUGH
15 THE USE OF DATE-AND-TIME-STAMPED DIGITAL PHOTOGRAPHY OR DIGITAL VIDEO, THE
16 NATURE OF THE PRIVATE PARKING VIOLATION. THE PRIVATE TOWING CARRIER SHALL
17 PROVIDE ALL PHOTOGRAPHIC OR VIDEO IMAGES TO THE OWNER OF THE MOTOR VEHICLE
18 OR THE OWNER'S AGENT, IF REQUESTED. THE PHOTOGRAPHIC EVIDENCE SHALL
19 INCLUDE ALL OF THE FOLLOWING:

- 20 1. IMAGES OF THE MOTOR VEHICLE BEING TOWED.
- 21 2. IMAGES OF THE SIGNAGE REQUIRED PURSUANT TO SUBSECTION ~~[C.]~~ [D]
- 22 OF THIS SECTION, IF APPLICABLE.
- 23 3. IMAGES OF THE ENTIRE MOTOR VEHICLE TAKEN FROM ALL FOUR CORNERS
- 24 OF THE MOTOR VEHICLE.
- 25 4. IMAGES OF THE MOTOR VEHICLE'S LICENSE PLATE OR MOTOR VEHICLE
- 26 IDENTIFICATION NUMBER.

27 ~~[F.]~~ [G.] ANY ~~[PERSON TOWING]~~ [PRIVATE TOWING CARRIER THAT TOWS] A
28 MOTOR VEHICLE FROM PRIVATE PROPERTY WITHOUT THE PERMISSION OF THE MOTOR
29 VEHICLE'S OWNER OR THE OWNER'S AGENT SHALL NOTIFY THE APPROPRIATE LAW
30 ENFORCEMENT AGENCY WITHIN ONE HOUR AFTER MECHANICALLY CONNECTING THE MOTOR
31 VEHICLE TO A PRIVATE TOWING CARRIER. THE PRIVATE TOWING CARRIER SHALL
32 PROVIDE THE APPROPRIATE LAW ENFORCEMENT AGENCY WITH ALL OF THE FOLLOWING
33 INFORMATION:

- 34 1. THE NAME AND ADDRESS OF THE MOTOR VEHICLE'S OWNER, IF KNOWN.
- 35 2. THE MOTOR VEHICLE'S LICENSE PLATE NUMBER AND VEHICLE
- 36 IDENTIFICATION NUMBER AND A DESCRIPTION OF THE MOTOR VEHICLE.
- 37 3. THE REASON FOR THE TOW OF THE MOTOR VEHICLE.
- 38 4. THE STREET ADDRESS OF THE IMPOUND LOT WHERE THE MOTOR VEHICLE
- 39 WILL BE IMPOUNDED.
- 40 5. THE NAME AND ADDRESS OF THE PRIVATE TOWING CARRIER THAT WILL TOW
- 41 THE MOTOR VEHICLE AND THE NAME OF THE PERSON WHO WILL TOW THE MOTOR
- 42 VEHICLE ON BEHALF OF THE PRIVATE TOWING CARRIER.
- 43 6. A PHONE NUMBER THAT IS ANSWERED TWENTY-FOUR HOURS A DAY, SEVEN
- 44 DAYS A WEEK FOR THE PRIVATE TOWING CARRIER AND THE IMPOUND LOT WHERE THE
- 45 MOTOR VEHICLE WILL BE IMPOUNDED.

1 ~~[G.]~~ [H.] A PRIVATE TOWING CARRIER SHALL RELEASE AN IMPOUNDED
2 MOTOR VEHICLE TO THE OWNER OF RECORD OR THE OWNER'S AGENT WHO PAYS, OR
3 MAKES ~~[SATISFACTORY]~~ ARRANGEMENTS TO PAY, THE CHARGES PRESCRIBED PURSUANT
4 TO SUBSECTION B OF THIS SECTION IN A MANNER CONSISTENT WITH THE DEPARTMENT
5 OF PUBLIC SAFETY TOW SERVICE AGREEMENT AND WHO PROVES OWNERSHIP OF THE
6 MOTOR VEHICLE BY PROVIDING A GOVERNMENT-ISSUED PHOTO IDENTIFICATION AND
7 ONE OF THE FOLLOWING:

8 1. A VALID CERTIFICATE OF TITLE.

9 2. PROOF OF A CURRENT VEHICLE REGISTRATION THAT IS NOT A RESTRICTED
10 USE THREE-DAY PERMIT.

11 3. A REPOSSESSION AFFIDAVIT AND A HOLD HARMLESS LIABILITY RELEASE
12 FROM LEGAL CLAIMS.

13 4. AN INSURANCE COMPANY RELEASE PURSUANT TO SECTION 28-4847.

14 5. A CERTIFIED VEHICLE RECORD.

15 6. PROOF OF A BONA FIDE SECURITY INTEREST OR OTHER FINANCIAL
16 INTEREST IN THE MOTOR VEHICLE THAT EXISTS AT THE TIME OF THE MOTOR VEHICLE
17 TOW.

18 ~~[H.]~~ [I.] THE PRIVATE TOWING CARRIER SHALL PROVIDE THE MOTOR
19 VEHICLE OWNER WITH AN ITEMIZED RECEIPT FOR SERVICES AND, ON REQUEST, SHALL
20 PROVIDE A COPY OF THIS STATUTE TO THE MOTOR VEHICLE OWNER OR OWNER'S AGENT
21 WHO RECLAIMS THE MOTOR VEHICLE.

22 ~~[I.]~~ [J.] A PRIVATE TOWING CARRIER THAT CHARGES A TOWING FEE
23 GREATER THAN THE TOWING FEE THAT IS PRESCRIBED PURSUANT TO SUBSECTION B OF
24 THIS SECTION MAY BE ORDERED TO REIMBURSE THE MOTOR VEHICLE OWNER FOR ANY
25 OVERCHARGES OR UNAUTHORIZED CHARGES.

26 ~~[J.]~~ [K.] A PRIVATE TOWING CARRIER OR [PRIVATE] PARKING FACILITY
27 OWNER THAT INTENTIONALLY, KNOWINGLY OR RECKLESSLY VIOLATES THIS SECTION IS
28 LIABLE TO THE OWNER OF THE MOTOR VEHICLE THAT IS THE SUBJECT OF THE
29 VIOLATION FOR DAMAGES EQUAL TO TWO TIMES THE AMOUNT OF THE FEES ASSESSED
30 AS PART OF THE MOTOR VEHICLE'S TOWING AND STORAGE.

31 [L. A PRIVATE TOWING CARRIER MAY NOT REQUIRE IMMEDIATE PAYMENT AS A
32 CONDITION OF RELEASING A MOTOR VEHICLE.]

33 ~~F.~~ ~~[K.]~~ [M.] This section ~~shall apply~~ APPLIES only to services
34 performed while a person is actually engaged in the activities of a
35 private towing carrier.

36 ~~F.~~ ~~[L.]~~ [N.] ~~The provisions of~~ This section ~~do~~ DOES not apply to
37 abandoned or junk vehicles disposed of pursuant to title 28, chapter 11.

38 ~~[M.]~~ [O.] A PERSON WHO VIOLATES THIS SECTION IS GUILTY OF A CLASS
39 2 MISDEMEANOR.

40 ~~[N.]~~ [P.] THIS SECTION DOES NOT APPLY TO AGREEMENTS ENTERED INTO
41 BETWEEN LAW ENFORCEMENT AGENCIES AND PRIVATE TOWING CARRIERS FOR LAW
42 ENFORCEMENT-INITIATED TOWING SERVICES.

43 [Q. THIS SECTION SHALL BE ENFORCED BY A CITY'S OR TOWN'S LAW
44 ENFORCEMENT AGENCY.]

1 R. A PRIVATE TOWING CARRIER MAY NOT PAY OR AGREE TO PAY A PRIVATE
2 PROPERTY OWNER OR AN AGENT OF A PRIVATE PROPERTY OWNER FROM WHICH A MOTOR
3 VEHICLE IS TOWED. A PRIVATE PROPERTY OWNER OR AN AGENT OF A PRIVATE
4 PROPERTY OWNER FROM WHICH A MOTOR VEHICLE IS TOWED MAY NOT ACCEPT OR AGREE
5 TO ACCEPT ANY MONEY, FEES, COMMISSIONS, CREDITS, GIFTS, GRATUITIES OR
6 OTHER COMPENSATION FOR THE PROVIDED TOWING SERVICE.]

7 ~~G. [0.] [S.]~~ For the purposes of this section, "private towing
8 carrier"[:

9 1.] Means any person who commercially offers services to tow,
10 transport or impound motor vehicles from private property without the
11 permission of the owner or operator of the vehicle by use of a truck or
12 other vehicle designed for or adapted to that purpose

13 [2. DOES NOT INCLUDE A MOTOR VEHICLE DEALERSHIP.]

14 Sec. 2. Section 11-251.04, Arizona Revised Statutes, is amended to
15 read:

16 11-251.04. State preemption; rates for private towing
17 carrier; release of motor vehicle; damages;
18 applicability; definition

19 ~~A. Except as provided in subsection B of this section, the board of~~
20 ~~supervisors may regulate the maximum rate and charge for towing,~~
21 ~~transporting or impounding a motor vehicle from private property without~~
22 ~~the permission of the owner or operator of the vehicle by any private~~
23 ~~towing carriers doing business within the boundaries of the county.~~
24 ~~A private towing carrier is subject to the maximum rate and charge~~
25 ~~regulation prescribed by the board of supervisors for all such towing,~~
26 ~~transporting or impounding services if the vehicle being towed or~~
27 ~~transported is towed from private property located on property that lies~~
28 ~~within the boundaries of the county.~~

29 ~~B. The provisions of Subsection A of this section shall not apply~~
30 ~~to the towing, transporting or impounding of a motor vehicle from private~~
31 ~~property without the permission of the owner or operator of the vehicle by~~
32 ~~a private towing carrier where the vehicle being towed or transported is~~
33 ~~towed or transported from property that lies within the boundaries of an~~
34 ~~incorporated city or town that has regulated such towing, transporting or~~
35 ~~impounding pursuant to section 9-499.05.~~

36 A. THE REGULATION OF TOWING RATES FOR [MOTOR VEHICLES THAT ARE
37 TOWED FROM PRIVATE PROPERTY BY] PRIVATE TOWING CARRIERS PURSUANT TO THIS
38 SECTION IS A MATTER OF STATEWIDE CONCERN. THE REGULATION OF TOWING RATES
39 FOR [MOTOR VEHICLES THAT ARE TOWED BY] PRIVATE TOWING CARRIERS PURSUANT TO
40 THIS SECTION IS NOT SUBJECT TO FURTHER REGULATION BY A COUNTY, CITY, TOWN
41 OR OTHER POLITICAL SUBDIVISION OF THIS STATE.

42 B. [FOR A COUNTY THAT DOES NOT REGULATE THE RATE FOR PRIVATE TOWING
43 MOTOR VEHICLES FROM PRIVATE PROPERTY AS OF JANUARY 1, 2026.] THE RATE FOR
44 TOWING, TRANSPORTING, IMPOUNDING OR STORING A MOTOR VEHICLE [THAT IS TOWED
45 FROM PRIVATE PROPERTY] SHALL BE THE RATE PUBLISHED IN THE DEPARTMENT OF

1 PUBLIC SAFETY TOW SERVICE AGREEMENT FOR THE LOCATION FROM WHICH THE MOTOR
2 VEHICLE WAS TOWED.

3 [C. ON OR BEFORE JANUARY 1, 2027, A COUNTY THAT HAS, AS OF JANUARY
4 1, 2026, REGULATED THE RATE FOR PRIVATE TOWING MOTOR VEHICLES FROM PRIVATE
5 PROPERTY SHALL UPDATE THE RATES FOR PRIVATE TOWING FROM PRIVATE PROPERTY
6 TO THE MARKET STANDARDS OR THE RATES AND FEES PRESCRIBED BY THIS SECTION.]

7 ~~[C.]~~ [D.] It is unlawful for a private towing carrier to tow or
8 transport a motor vehicle from private property without the permission of
9 the owner or operator of the motor vehicle unless ~~such~~ THE private towing
10 carrier receives a request from a law enforcement agency or the express
11 written permission from the owner or the agent of the owner of the
12 property. The owner or ~~his~~ THE OWNER'S agent shall either sign each
13 towing order or authorize the tow by a written contract ~~which~~ THAT is
14 valid for a specific length of time. The private towing carrier may not
15 act as the agent of the owner.

16 ~~D. A person who violates subsection C is guilty of a class 2~~
17 ~~misdemeanor.~~

18 ~~[D.]~~ [E.] A PRIVATE TOWING CARRIER SHALL RELEASE AN IMPOUNDED
19 MOTOR VEHICLE TO THE OWNER OF RECORD OR THE OWNER'S AGENT WHO PAYS, OR
20 MAKES [SATISFACTORY] ARRANGEMENTS TO PAY, THE CHARGES PRESCRIBED PURSUANT
21 TO SUBSECTION B OF THIS SECTION IN A MANNER CONSISTENT WITH THE DEPARTMENT
22 OF PUBLIC SAFETY TOW SERVICE AGREEMENT AND WHO PROVES OWNERSHIP OF THE
23 MOTOR VEHICLE BY PROVIDING A GOVERNMENT-ISSUED PHOTO IDENTIFICATION AND
24 ONE OF THE FOLLOWING:

- 25 1. A VALID CERTIFICATE OF TITLE.
- 26 2. PROOF OF A CURRENT VEHICLE REGISTRATION THAT IS NOT A RESTRICTED
27 USE THREE-DAY PERMIT.
- 28 3. A REPOSSESSION AFFIDAVIT AND A HOLD HARMLESS LIABILITY RELEASE
29 FROM LEGAL CLAIMS.
- 30 4. AN INSURANCE COMPANY RELEASE PURSUANT TO SECTION 28-4847.
- 31 5. A CERTIFIED VEHICLE RECORD.
- 32 6. PROOF OF A BONA FIDE SECURITY INTEREST OR OTHER FINANCIAL
33 INTEREST IN THE MOTOR VEHICLE THAT EXISTS AT THE TIME OF THE MOTOR VEHICLE
34 TOW.
- 35 7. PROOF OF A LIEN ON THE MOTOR VEHICLE, IF APPLICABLE.

36 ~~[E.]~~ [F.] THE PRIVATE TOWING CARRIER SHALL PROVIDE THE MOTOR
37 VEHICLE OWNER WITH AN ITEMIZED RECEIPT FOR SERVICES AND, ON REQUEST, SHALL
38 PROVIDE A COPY OF THIS STATUTE TO THE MOTOR VEHICLE OWNER OR OWNER'S AGENT
39 WHO RECLAIMS THE MOTOR VEHICLE.

40 ~~[F.]~~ [G.] A PRIVATE TOWING CARRIER THAT CHARGES A TOWING FEE
41 GREATER THAN THE TOWING FEE THAT IS PRESCRIBED PURSUANT TO SUBSECTION B OF
42 THIS SECTION MAY BE ORDERED TO REIMBURSE THE MOTOR VEHICLE OWNER OF ANY
43 OVERCHARGES OR UNAUTHORIZED CHARGES.

44 [H. A PRIVATE TOWING CARRIER MAY NOT REQUIRE IMMEDIATE PAYMENT AS A
45 CONDITION OF RELEASING A MOTOR VEHICLE.]

1 ~~[G.]~~ [I.] A PRIVATE TOWING CARRIER OR [PRIVATE] PARKING FACILITY
2 OWNER THAT INTENTIONALLY, KNOWINGLY OR RECKLESSLY VIOLATES THIS SECTION IS
3 LIABLE TO THE OWNER OF THE MOTOR VEHICLE THAT IS THE SUBJECT OF THE
4 VIOLATION FOR DAMAGES EQUAL TO TWO TIMES THE AMOUNT OF THE FEES ASSESSED
5 AS PART OF THE MOTOR VEHICLE'S TOWING AND STORAGE.

6 [J. THIS SECTION SHALL BE ENFORCED BY A COUNTY'S LAW ENFORCEMENT
7 AGENCY.

8 K. A PRIVATE TOWING CARRIER MAY NOT PAY OR AGREE TO PAY A PRIVATE
9 PROPERTY OWNER OR AN AGENT OF A PRIVATE PROPERTY OWNER FROM WHICH A MOTOR
10 VEHICLE IS TOWED. A PRIVATE PROPERTY OWNER OR AN AGENT OF A PRIVATE
11 PROPERTY OWNER FROM WHICH A MOTOR VEHICLE IS TOWED MAY NOT ACCEPT OR AGREE
12 TO ACCEPT ANY MONEY, FEES, COMMISSIONS, CREDITS, GIFTS, GRATUITIES OR
13 OTHER COMPENSATION FOR THE PROVIDED TOWING SERVICE.]

14 ~~F.~~ ~~[H.]~~ [L.] This section ~~shall apply~~ APPLIES only to services
15 performed while a person is actually engaged in the activities of a
16 private towing carrier.

17 ~~F.~~ ~~[I.]~~ [M.] For the purposes of this section, "private towing
18 carrier" means any person who commercially offers services to tow,
19 transport or impound motor vehicles from private property without the
20 permission of the owner or operator of the vehicle by use of a truck or
21 other vehicle designed for or adapted to that purpose."

22 <<Sec. 3. Heavy-duty truck towing study committee;
23 membership; duties; report; delayed repeal

24 [A. The heavy-duty truck towing study committee is established and
25 consists of the following members:

26 1. One member of the house of representatives who is appointed by
27 the speaker of the house of representatives.

28 2. One member of the senate who is appointed by the president of
29 the senate.

30 3. Two members who represent the private towing industry, one who
31 is appointed by the speaker of the house of representatives and one who is
32 appointed by the president of the senate.

33 4. Two members who represent the trucking industry, one who is
34 appointed by the speaker of the house of representatives and one who is
35 appointed by the president of the senate.

36 5. One member who represents the department of public safety and
37 who is appointed by the governor.

38 B. The members of the board shall elect a chairperson and vice
39 chairperson.

40 C. The study committee shall:

41 1. Review the current practices that are related to towing vehicles
42 that weigh twenty-six thousand pounds or more.

43 2. Review cargo release practices.

44 3. Review heavy-duty truck towing enforcement issues.

45 4. Evaluate the minimum towing insurance requirements.

1 5. Discuss establishing a state towing board and potential state
2 towing board duties.

3 D. On or before June 30, 2027, the committee shall submit a report
4 regarding the committee's activities and recommendations to the governor,
5 the president of the senate and the speaker of the house of
6 representatives and shall provide a copy of the report to the secretary of
7 state.

8 E. This section is repealed from and after December 31, 2027.]>>

9 Enroll and engross to conform

10 Amend title to conform

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